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Athens, December 2, 2024
Protocol No.: 3388

DECISION 19/2024

The Hellenic Data Protection Authority (hereinafter referred to as the "Authority") convened, following an invitation from the President, in a meeting via teleconference on Tuesday, April 30, 2024, subsequent to the meeting of November 14, 2023, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, and Aikaterini Iliadou. The alternate members Georgios Kontis and Maria Psalla were also present, substituting for the regular members Christos Kalloniatis and Grigorios Tsolias, who were absent despite being duly summoned in writing, as well as the alternate member Nikolaos Libos as a rapporteur without voting rights pursuant to Article 8 paragraph 2 of the Authority's Operating Regulation. Present, without voting rights, were Fotini Karvela, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/5921/30-08-2019, A (... hereinafter referred to as the complainant) filed a complaint against the company Vodafone – PANAFON S.A. (hereinafter referred to as the respondent), alleging inadequate satisfaction of the right of access exercised against the respondent. Specifically, according to the complaint, on ..., the complainant, who is a subscriber of the respondent, submitted a request for access, pursuant to Article 15 of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data (hereinafter: GDPR), to his personal data processed by the respondent and specifically to the information described in Article 15 paragraph 1 points a', b', c', d', z', h' and 15 paragraph 2 of the GDPR. He also requested, pursuant to Article 15 paragraph 3 of the GDPR, the provision of a copy of the aforementioned data. The time period for which the complainant requested access is one year, specifically the period from ... to The respondent responded to the complainant's request in a timely manner – on ... – however, the latter, considering the response inadequate, addressed the respondent again in writing on the same day, complaining about its failure to provide him with information regarding the data it maintains as a provider of publicly available electronic communications services in accordance with Article 5 of Law 3917/2011, as well as regarding the data it may collect during the use of the "My Vodafone" application, which the complainant has installed on his mobile device and has linked to his phone number. In this last written communication, the complainant also requested the respondent to reconsider his initial request and to respond more comprehensively.

The respondent, in its letter dated ..., replied to the complainant that the information provided to him in response to his first request was final and that for further information he could refer to the company's website, specifically to the links containing the company's privacy policy and cookie policy.

Additionally, it informed him that he could obtain detailed information about his accounts through My Account and the My Vodafone app, while in his monthly bills he could, through the detailed statement, be informed about the total number of his calls, any charges outside the fixed fee, and the total duration of the calls.

Regarding any further information concerning customer personal data, which is subject to processing and is depicted in the...

internal information systems, the respondent informed the complainant that it can provide the said information only to the competent Authorities, upon relevant request. Furthermore, according to the complaint under consideration, the respondent did not satisfy the complainant's right of access regarding the recipients to whom his data was communicated, the purposes for which it was

processed, as well as further information concerning the processing to which his data is subjected when using the "My Vodafone" application, which he has installed and linked to his phone number. On the contrary, according to the complainant's claims, the respondent referred him to the privacy policy and the cookies policy published on its website, which, in his opinion, does not constitute a personalized response to his right of access as a data subject. Furthermore, in the complaint under examination, the complainant asserts that the retention of electronic communications data allows for the extraction of particularly accurate conclusions regarding the privacy of the subjects; therefore, in his view, when a data subject exercises their right of access against an electronic communications provider, they must be adequately informed about the retention of such data and the legal basis for this processing, taking into account that the applicable Greek legislation, namely Law 3917/2011, which, as the complainant notes, has not yet been amended, is based on the provisions of Directive 2006/24/EC, which has been declared invalid by the CJEU¹, as it exceeds the limits imposed by the principle of proportionality in light of Articles 7, 8, and 52(1) of the Charter of Fundamental Rights of the EU (hereinafter referred to as the Charter). Also, according to the complainant, the prohibition of access to his electronic communications metadata cannot last indefinitely, as such a general, complete, and time-unlimited restriction of the right of access is not in accordance with Article 9A of the Constitution, Article 8 of the Charter, and Article 8 of the European Convention on Human Rights. In the same spirit, the complainant states that the provision of Article 33(1)(b)(aa) of Law 4624/2019, according to which the right of access of the data subject does not apply when the data was recorded solely because it cannot be deleted due to legal or regulatory obligations to retain it, excessively restricts his right of access and therefore constitutes a violation of Union law. The Authority, in the context of examining the above complaint, with its letter No. Γ/ΕΞ/5921-1/28-11-2019, invited the respondent to express its views on the allegations. The respondent provided clarifications regarding the allegations with its letter No. Γ/ΕΙΣ/9059/24-12-2019, in which it argues the following: A) When called to satisfy the complainant's access request, it timely provided him with all the information concerning the items referred to in Article 15(1)(a), (b), (c), (d), (z), and (h) of the GDPR. Further information falling under the above provision was provided to the complainant by referring him to the company's Privacy and Cookies Policy, in accordance with the principle of transparency, which requires any information provided to the data subject to be concise, easily accessible, and understandable, with clear and plain wording, without unnecessary over-information, and may also be provided in electronic form via a website. B) Regarding the data of Article 15(1)(z) of the GDPR, the respondent stated that "data not collected from the data subject do not arise from third-party sources," while concerning the information falling under Article 15(1)(f) of the GDPR, there is also no automated decision-making, including profiling that produces legal effects concerning the complainant or significantly affects him in a similar manner. The processing based on the consents provided by the complainant concerns identity-determining elements and information about the services of the respondent that he uses, with the aim of providing personalized service and the

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Commercial promotion of products/services of the respondent (end of speaking time - data, update on new products of the respondent), without in any case processing that indicates details regarding the personal life of the complainant. C) Regarding the complainant's account data, the respondent provides its subscribers with full control over access to this data through the My Vodafone/My Account application, aiming for their complete and transparent information through better adherence to the principles of data minimization and data protection by design. D) Concerning the complainant's request for access to data falling under the provisions of Law 3917/2011, the respondent considers that this is not provided for by the applicable legislation, given that it can only provide this information to the competent Authorities upon relevant request, as it pertains to the lifting of confidentiality and requires the issuance and notification of a ruling by the competent Judicial Council. Specifically, it emphasizes that, pursuant to Article 1 of Law 3917/2011, which transposed Directive 2006/24/EC into Greek law, providers of publicly available electronic communications services or public communications networks are obliged to retain certain telecommunications data that are generated or processed by them, in order to be available to the competent Authorities for the investigation of particularly serious crimes as

defined in Article 4 of Law 2225/1994. The retained data is provided, according to Article 4 of Law 3917/2011, only to the competent Authorities, in accordance with the procedure, conditions, and terms of access provided for in Law 2225/1994 (as it was in force at the time of the submission of the respondent's views). Furthermore, the respondent argues that, according to Law 2225/1994, the lifting of communication confidentiality is permissible for the investigation of specific and exhaustively enumerated felonies, provided that the competent judicial council reasonably determines that the investigation of the case or the ascertainment of the defendant's residence is impossible or significantly difficult without it. Specifically, the lifting is imposed by a ruling of the Court of Appeals or Criminal Court following a request from the competent Prosecutor or in exceptionally urgent cases by a ruling of the Prosecutor conducting the preliminary investigation or preliminary examination and the investigator conducting the main investigation.

In addition, in the respondent's view, the extraction of such information requires, on the one hand, a disproportionate effort in relation to what is appropriate and necessary to achieve the objectives pursued by the existing legislation, and on the other hand, it requires the processing of third-party data in order to isolate the information that pertains only to the complainant – processing that is neither provided for nor substantiated in the purposes of processing pursued by the respondent nor in its individual relevant procedures.

Given the above, the Authority, with its letters numbered Γ/ΕΞΕ/2735/30-10-2023 and Γ/ΕΞΕ/2650/23-10-2023, summoned the parties involved to the plenary session of the Authority on 14-11-2023, in order to hold a hearing on the potential violation of the existing legislation for the protection of personal data. In this session, the complainant appeared in person, and on behalf of the respondent were Mr. Emmanouil Dimogerontakis (lawyer in Athens with registration number ...), Ms. Konstantina Maria Karopoulou (lawyer in Athens, with registration number ...), and Mr. B, Data Protection Officer of the respondent. Both parties orally presented their views. Specifically, the complainant argued that the respondent's response to his submitted request for access was neither complete nor adequate, as it referred him to its general terms, while regarding the retention of his metadata, the respondent did not inform him at all and refused to grant him access to it. The respondent also orally presented its views and was granted a deadline during this session to submit a memorandum to further support its claims, and it timely submitted its memorandum numbered Γ/ΕΙΣ/8768/11-12-2023, in which it raised, among other things, the following, briefly mentioned:

After providing a brief history, the respondent reiterates what it had mentioned in its written explanations to the Authority, in response to the Authority's letter numbered Γ/ΕΞ/5921-1/28-11-2019 for the provision of explanations (with which it supported...

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that the company responded in a timely, sufficient, and fully justified manner to the complainant, informing him about the personal data it holds and making it clear that, regarding the metadata of his electronic communications, the company can only provide this to the competent authorities upon a relevant request. It further argues that: A) the complainant's request was general and vague, as it referred to all personal data held by the company without being explicitly specified by the complainant, B) the company informed the complainant about the identity data it holds, his registry details, information regarding his mobile phone connection, device data, and details regarding the consents he provided for the use of his personal data for promotional purposes. For more detailed information regarding the purposes of processing and specific categories of held data, it referred him to the Privacy and Personal Data Protection Policy posted on its website, thus fulfilling, in its view, the requirements of Articles 13 and 14 of the GDPR regarding information in accordance with the principle of transparency, C) regarding the data of Article 5 of Law 3917/2011, the company reiterated its claim that these are held exclusively to be made available to the competent authorities for the investigation of particularly serious crimes, as defined in Article 4 of Law 2225/1994, and therefore, subscribers are not only not authorized but are expressly prohibited from accessing them. However, according to the company, the Privacy and Personal Data Protection Policy explicitly mentions the collection and processing of the aforementioned category of personal data (traffic and location) for the purpose of

billing subscribers and in compliance with its legal obligations, D) regarding the detailed account information of the complainant, namely outgoing calls, charges, and call duration, which fall under the concept of traffic data of Law 3471/2006, the complainant can access this information through the My Account applications and the My Vodafone App.

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In its memorandum, the company also refers to the processing of communication metadata under Law 3917/2011, as well as Law 3471/2006. Specifically, the company describes the retention of these data in accordance with Articles 4 and 5 of Law 3917/2011 and emphasizes that it retains them for twelve months from the date of communication, in order to be able to transmit them to the competent authorities, in accordance with the procedure of Law 5002/2022, which replaced Law 2225/1994, which was in force at the time of the submission of the complaint in question. According to the company's memorandum, these data are retained in a Special Data Retention System, as provided in Joint Act 1/2013 of the Authority and the Hellenic Authority for Communication Security and Privacy (ADAE) regarding the obligations of providers for the protection and security of data, in accordance with the provisions of Article 7 of Law 3917/2011. Furthermore, the company states that it maintains all necessary technical and organizational measures, policies, and procedures to protect the confidentiality and security of communication metadata, while in relation to the process of lifting confidentiality and identifying malicious and harassing calls (Article 8 paragraph 7a of Law 3471/2006), it applies the specific Confidentiality Lifting Policy PL-030. In the memorandum submitted to the Authority, the company further refers to the retention of metadata in compliance with the provisions of Law 3471/2006, which incorporates Directive 2002/58/EC (known as the e-privacy Directive) into Greek law. More specifically, the company states that, according to Article 6 of Law 3471/2006, upon the termination of communication, all traffic data (Article 2 paragraph 3 of Law 3471/2006) are destroyed or rendered anonymous, subject to Law 3917/2011. Furthermore, as stipulated in the same article in paragraph 2, for the purposes of billing/invoicing its subscribers in accordance with Law 3471/2006, the company processes a limited subset of metadata for twelve months from the date of communication, unless the account is disputed or remains unpaid. Subsequently, in its memorandum, the company also emphasizes that, according to Greek and European legislation and case law, it is generally accepted that the concept of the absolute inviolability of the confidentiality of communication includes the

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the entirety of the communication event, namely not only the content of the communication but also the related external elements produced by the communication, that is, the traffic and location data. According to the respondent, the aforementioned inclusion of the external elements of communication within the concept of the confidentiality of communication results, on the one hand, in the possibility of access to them only under the guarantees of the procedure for lifting the confidentiality provided by the executive law of Article 19 of the Constitution (Law 2225/1994 at the time of the examination of the complaint in question, which has since been replaced by Law 5002/2022), and on the other hand, in the limitation of the right to access such data. More specifically, according to the respondent, the right of access guaranteed by the GDPR is not absolute and may be subject to restrictions, provided that these meet the criteria set out in Article 23 of the GDPR. Such a restriction, according to the respondent's memorandum, is established by the provision of Article 33 of Law 4624/2019, which in paragraph 1, subparagraph a, items aa and bb, provides that "[...] the right of access of the data subject, according to Article 15 of the GDPR, does not apply when the data was recorded solely because it cannot be deleted due to legal or regulatory obligations to retain it." or "serves exclusively for the purposes of protection or control of the data and providing information would require a disproportionate effort and the necessary technical and organizational measures make processing for other purposes impossible." Based on the above, the respondent concludes that, in the event of a subscriber's request for access to their communication metadata, it does not extract this data from the Special Data Retention System, which is used exclusively for the purposes of Law 3917/2011, as it is provided only to the competent authorities through the procedure for lifting confidentiality. However,

the respondent provides access to subscriber traffic data that it retains for billing purposes of subscribers, in the billing information system, which is a subset of the data retained in the Special Data Retention System.

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Specifically, the respondent clarifies in its memorandum that in the event of a request for access to outgoing calls and account data, it provides the requesting subscriber access to their data through the My Vodafone/My Account application. In the case of a request for access to incoming SMS, the respondent emphasizes that, if it is systemically feasible to extract the requested information accurately, it grants the requester a list of incoming SMS that were sent to the requesting subscriber's phone line. In response to a request for access to incoming calls, the respondent states in its memorandum that it provides the requesting subject access to the incoming calls they have received, provided that it is technically feasible in the respondent's information system to distinguish between calls made with caller line identification suppression and calls made with the caller line identification displayed, according to Decision No. 24/2009 of the Hellenic Authority for Communication Security and Privacy (ADAE), without clarifying whether such a distinction is indeed technically feasible. However, during the plenary session of the Authority on November 14, 2023, the respondent orally asserted that such a distinction is not technically feasible, which is why it does not satisfy the above requests, in order not to violate Article 15 paragraph 4 of the GDPR, which provides that "the right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others." The Authority, after examining the elements of the file and what emerged from the hearing before it and the respondent's memorandum, having heard

2 Decision No. 24/2009 of the ADAE provides that, subject to the legislation on personal data protection, the lifting of the confidentiality of communications during the procedure of the executive law of Article 19 of the Constitution (Law 2225/1994 at the time of the complaint submission) is distinguished from the case where one of the parties to the communication wishes to receive a consolidated list of incoming calls they have received, provided that these are calls for which the calling subscribers did not block the display of the caller line identification.

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the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, following an extensive discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. From the provisions of Articles 51 and 55 of the GDPR and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data.

2. According to Article 15 paragraphs 1 and 3 of the GDPR: "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information: a) the purposes of the processing, b) the relevant categories of personal data, c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular, recipients in third countries or international organizations, d) where possible, the period for which the personal data will be stored or, if not possible, the criteria used to determine that period, [...], g) where the personal data are not collected from the data subject, any available information as to their source, h) the existence of automated decision-making, including profiling, as referred to in Article 22 paragraphs 1 and 4 and, at least in those cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject. 2. When personal data are transferred to a third country or to an international organization, the data subject has the right to be informed of the appropriate safeguards pursuant to Article 46 regarding the transfer. 3. The data controller shall provide a copy of the personal data undergoing processing. [...] If the data subject submits the request by electronic means and unless the data subject requests

otherwise, the information shall be provided in a commonly used electronic format.” 4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

Furthermore, according to Article 12 of the GDPR: “1. The data controller shall take appropriate measures to provide the data subject [...] with any communication in the context of Articles 15 [...] 2. The data controller facilitates the exercise of the rights of data subjects as provided in Articles 15 [...].

According to the EDPB Guidelines 1/2022 on the Right of Access, in the context of a request for access under Article 15 of the GDPR, any information related to the processing being carried out that is available to the data controller may need to be tailored and individualized concerning the specific processing activities carried out regarding the data subject exercising the right of access at that time. Therefore, a reference to the wording of the Privacy Policy does not always, and without exception, constitute a sufficient means of providing information in accordance with the requirements of Article 15 paragraph 1 points a) to h) and paragraph 2 of the GDPR.

The CJEU recently reached the same conclusion, ruling that, unlike Articles 13 and 14 of the GDPR, which establish an obligation for the data controller to provide the data subject with information related to the categories of recipients or the specific recipients of the data concerning them, whenever that data is collected from the data subject or not collected from them, Article 15 of the GDPR establishes a genuine right of access.

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In favor of the data subject, resulting in the latter needing to have the ability to obtain from the data controller information regarding the specific recipients to whom the data has been disclosed or is to be disclosed, or, alternatively, to choose to request information only regarding the categories of recipients. Taking the above into account, it emerges that the right of access of the data subject to the personal data concerning them is established, primarily aimed at ensuring the data subject of the accuracy and lawful nature of the processing of their data and enabling them to exercise the remaining rights guaranteed by the GDPR for the benefit of the data subjects (Articles 16 to 19, 21, 79, and 82 of the GDPR). Therefore, the information provided to the data subject based on the right of access must be as accurate as possible. In the case under consideration, regarding the personal data held by the data controller and which were the subject of the exercised right of access, the data controller informed the complainant about the retained identification data, registry details, mobile phone connection details, device data, and information regarding the consents provided by them for the use of their personal data for promotional purposes. For more detailed information regarding the purposes of processing, the recipients of their personal data, specific categories of retained data, and personal data collected during the use of the "My Vodafone" application, they were referred to the posted Privacy and Personal Data Protection Policy on the website and in the "My Vodafone" application, where, however, the detailed information requested by the complainant is not provided with the required specificity. Consequently, based on the above, it emerges that regarding the said information, the data controller did not adequately satisfy the complainant's right of access under Article 15, paragraph 1, 3 in conjunction with Article 12, paragraph 2 of the GDPR.

4 See CJEU, *RW v. Österreichische Post AG*, C-154/21, para. 36.

5 See CJEU C-141/12, C-434/16, C-154/21.

6 See CJEU, *RW v. Österreichische Post AG*, C-154/21, para. 43.

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3. The Constitution states in Article 19, paragraph 1 that "the confidentiality of letters and free correspondence or communication in any other way is absolutely inviolable. Law defines the guarantees under which the judicial authority is not bound by confidentiality for reasons of national security or for the investigation of particularly serious crimes." It is consistently accepted by the case law of the CJEU, the ECtHR, and the Council of State that the concept of confidentiality encompasses the entirety of the communication event, that is, both the content and the external elements of the communication, namely, in relation to electronic communications, and the related generated traffic and location data or metadata. The protection of the external elements of communication is also provided

by Directive 2002/58/EC and the declared invalid by the CJEU Directive 2006/24, which have been incorporated into Greek law (by Laws 3471/2006 and 3917/2011 respectively). Moreover, there is no violation of the confidentiality of communication by the communicating party, given that confidentiality does not exist against the entity it protects; rather, the prohibition of violations is directed at third parties. Consequently, there is no impediment, based on Article 19 of the Constitution, for the party called upon to request the disclosure of the external elements of the communication of which they are a part.

4. The data controller invokes the provisions of Law 3917/2011 to justify its refusal to satisfy the complainant's request to gain access to the electronic communications data that it holds. Specifically, it invokes Article 1 of Law 3917/2011, according to which providers of publicly available electronic communications services or public communications networks are obliged to retain certain telecommunications data that are generated or processed by them, in order to be available to the competent Authorities for the investigation of particularly serious crimes.

7 See CJEU joined cases C-293/12 and C-594/12.

8 See ECtHR, *Malone v. UK*, *P.G. and J.H. v. UK*, *Heglas v. Czech Republic*.

9 See Council of State 1593/2016.

10 See Article 4 of the draft e-privacy Regulation.

11 See CJEU, joined cases C-293/12 and C-594/12.

12 See Dagdoglu, *Individual Rights*, ed. Ant. N. Sakoula, p. 421, Spyropoulos/Kontiadis/Anthopoulos/Gerapetritis, *HermSynt* (2017), Article 19, paragraph 1, p. 480.

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as defined in Article 4 of Law 2225/1994 at the time of the exercise of the contested complaint and now defined in Law 5002/2022. These data, which are specifically identified in Article 5 of Law 3917/2011, are stored and retained, pursuant to Article 6 of Law 3917/2011, by the providers for 12 months from the date of communication and are provided, according to Article 4 of the aforementioned law, only to the competent Authorities, in accordance with the procedures, conditions, and terms of access provided for in Law 2225/1994 (now Law 5002/2022). Law 3917/2011, the provisions of which are invoked by the respondent, incorporated into the Greek legal order Directive 2006/24/EC of the European Parliament and of the Council on the retention of data generated or processed in connection with the provision of publicly available electronic communications services or public communications networks (known as the Data Retention Directive). This Directive aimed at the retention and access to traffic and location data of communications of all users and subscribers of fixed and mobile telephony for the purposes of investigating serious crimes and combating terrorism and organized crime.

However, the CJEU, in its decision on the case *Digital Rights Ireland Ltd. et al.*, declared Directive 2006/24/EC invalid, ruling that a general interest purpose, such as combating serious crime and particularly organized crime and terrorism, however fundamental it may be, cannot, by itself, be proposed as a justification for the preventive, mandatory retention and non-deletion by providers of communication data for all citizens of the EU, without the existence of some element that directly or indirectly links them to suspicions of committing criminal acts, as this would violate the principle of proportionality in light of Articles 7, 8, and 52(1) of the Charter, which respectively guarantee the protection of private and family life and personal data and set the conditions for the lawful restriction of rights protected by the Charter. This decision resulted in several EU countries having subsequently abolished their corresponding national legislation, making preventive surveillance of electronic communications impossible. In Greece, however, Law 3917/2011 continues to be in force, while the relevant legislative committee of the Ministry of Justice, which was established in 2014 to repeal or amend the existing national legislation in light of the CJEU's decision in *Digital Rights Ltd. et al.*, has suspended its work.

5. Directive 2002/58/EC of the European Parliament and of the Council concerning the processing of personal data and the protection of privacy in the electronic communications sector (known as the e-Privacy Directive), which was incorporated into the Greek legal order by Law 3471/2006, aims to ensure full respect for the rights guaranteed in Articles 7 and 8 of the Charter and for this purpose

establishes in Article 5(1) the principle of confidentiality of electronic communications and related traffic data and entails the prohibition of storage or any other form of monitoring or surveillance of the aforementioned data by third parties (especially public Authorities) other than the users, without their consent. Regarding specifically the storage of traffic data by providers, Article 6 of Directive 2002/58 states that this is permitted only to the extent and for as long as necessary for the commercial promotion of services, their billing, and the provision of value-added services. Upon the expiration of this period, the stored data must be deleted or rendered anonymous. A similar regulation applies to the provisions of Article 9 of the aforementioned Directive concerning location data.

However, Article 15(1) of Directive 2002/58 allows Member States to establish exceptions to the obligation to maintain confidentiality.

14 For example, Austria, Belgium, Slovakia, the Netherlands; see Adam Juszcak, Elina Sason, *Recalibrating Data Retention in the EU. The Jurisprudence of the Court of Justice of the EU on Data Retention – Is this the End or is this the Beginning?*, p. 262, eucrim4/2021, available at <https://eucrim.eu/articles/recalibrating-data-retention-in-the-eu/#statement>

15 See CJEU Judgment *Bundesrepublik Deutschland v. SpaceNet, AG/Telekom Deutschland GmbH*, C-793/19, C-794/19 and Judgment *G.D v. Commissioner of An Garda Siochana*, C-140/22.

16 See CJEU, Judgment *Ministerio Fiscal*, C-207/16.

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of communication, as described above, when this restriction is a necessary, appropriate, and proportionate measure in a democratic society for the safeguarding of national security, national defense, and public safety, and for the prevention, investigation, establishment, and prosecution of criminal offenses. For this purpose, Member States may adopt legislative measures that impose on providers the obligation to retain communication data for a specified period, when this is justified by one of the aforementioned purposes.

6. Following the declaration of Directive 2006/24/EC as invalid, the legal status prior to it, that of Directive 2002/58, applies, the aforementioned provision of Article 15(1) of which was interpreted by the CJEU¹⁷ with the criteria accepted in the aforementioned judgment in the case of *Digital Rights Ireland Ltd et al.* regarding the legal basis for data retention. Specifically, it was ruled that this provision of Directive 2002/58, interpreted in light of Articles 7, 8, 11, and 52(1) of the Charter, means that any national regulation that provides for general and indiscriminate retention of all traffic and location data of all subscribers and registered users concerning all means of electronic communication, for the purpose of combating crime, is contrary to it. Regarding this provision of Article 15(1) of the Directive, the CJEU has subsequently accepted that the exceptional restriction of the rights and obligations provided for, among others, in the aforementioned Articles 5, 6, and 9 of the same Directive must be interpreted narrowly, given that it concerns a restriction of an individual right and any such national provision cannot become the rule¹⁸. Such retention constitutes per se, on the one hand, a deviation from the prohibition of storing such data and, on the other hand, an interference with the fundamental rights to respect for private life and protection of personal data¹⁹.

17 CJEU, Judgment *Tele2 Sverige AB et al.*, Joined Cases C-203/15, C-698/15.

18 See CJEU, C-793/19, C-794/19, C-140/20.

19 See CJEU, C-793/19, C-794/19.

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7. The conditions for the lawful restriction of the rights of data subjects protected under the GDPR are defined in Article 23 of the GDPR, which provides for the possibility of restricting these rights by legislative measure for the purpose of serving important objectives of general public interest mentioned in the same article, provided that the imposed restrictions respect the essence of fundamental rights and freedoms and constitute a necessary and proportionate measure in a democratic society. This condition set forth in the above article corresponds to the criteria established by the case law of the CJEU and the ECtHR for the restriction of the rights protected by the GDPR, including the right of access. Regarding restrictions on the right of access, Article 33(1)(b) of Law 4624/2019 provides that

“[...] the right of access of the data subject, according to Article 15 of the GDPR, does not apply when [...] b) the data aa) were recorded solely because they cannot be deleted due to legal or regulatory provisions requiring their retention or bb) serve exclusively purposes of data protection or control, and providing information would require a disproportionate effort and the necessary technical and organizational measures make processing for other purposes impossible.”

The party concerned claims that, in this case, in relation to the data it retains as a provider of publicly available electronic communications services according to Article 5 of Law 3917/2011, there is a lawful restriction of the right of access of the subjects, according to Article 33(1)(b) of Law 4624/2019, which aligns with the provisions of Law 3917/2011.

However, according to the above, the restriction of the right of access based on the provision of Article 33(1)(b)(aa) and (bb) of Law 4624/2019 is not compatible with the conditions set by Article 23 of the GDPR for the restrictions of rights and therefore cannot be applied. Specifically, according to the aforementioned, the regulation of Law 3917/2011, according to which access to the data retained by providers of publicly available services...

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The fact that only the competent authorities have access to electronic communications data and not the data subjects implies an unacceptable restriction of the right of access, which contradicts the Charter (Articles 7, 8, 52 para. 1) and the GDPR (Article 23) and, therefore, cannot be applied in this case, regardless of the obligation to amend the relevant provision to align with the requirements of the aforementioned provisions of the Charter and the GDPR, as well as the relevant case law of the CJEU.

8. Regarding the access of the data subjects/subscribers to their incoming calls, the entity in question claims, as a prerequisite that must be met in order to provide the requested data subject access to the incoming calls they have received, the technical capability of its information system to distinguish between calls made with caller line identification suppression and those made with the caller line identification displayed, which essentially refers to the application of the provision of Article 15 para. 4 of the GDPR, according to which "the right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others." The reservation contained in this provision regarding the safeguarding of the rights and freedoms of third parties does not prevent the provision of any information to the data subject (see Recital 63 GDPR), but the fulfillment of the conditions for application must be assessed on a case-by-case basis (in concreto) by the data controller (see Recital 63 GDPR), who is obliged, pursuant to Article 12 para. 1 in conjunction with Article 24 para. 1 GDPR, to take appropriate measures to provide the data subject with all possible information within the framework of Articles 15 to 22 and Article 34 of the GDPR. Consequently, in order to restrict the right to obtain a copy of the data subject by invoking the provision of Article 15 para. 4 GDPR, it is not sufficient to have a general concern that the rights and freedoms of others may be affected by the response to the access request, but the data controller must be able to demonstrate that the satisfaction of the right in the specific case would adversely affect the rights and freedoms of a specific other person.

In particular, when the assessment under Article 15 para. 4 GDPR demonstrates that the response to the request has negative implications for the rights and freedoms of other parties involved, their interests must be weighed considering the specific circumstances of the case and, in particular, the likelihood and severity of the risks posed by the disclosure of the data. The data controller should seek to reconcile the conflicting rights, for example, by implementing appropriate measures to mitigate the risk to the rights and freedoms of others. As emphasized in Recital 63 of the GDPR, the protection of the rights and freedoms of others under Article 15 para. 4 GDPR should not result in the denial of the provision of any information to the data subject. This could mean, in the case of applying the restriction, that information concerning others should be rendered unreadable to the extent possible rather than a total denial of providing a copy of the personal data. However, if it is impossible to find a solution for reconciling the relevant rights, the data controller must decide which of the conflicting rights and freedoms prevail.

21 See Decision of the Authority No. 23/2024, Recital 9.

22 See EDPB, Guidelines 01/2022 on data subjects' rights – Right of access, Version 2.0, adopted on 28 March 2023, para. 173, https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf

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In the case under consideration, however, the entity does not substantiate the reasons for which the right of access of the data subjects, subscribers to the calls they have received, cannot be satisfied without adversely affecting the rights or freedoms of third parties, nor does it clarify whether and for what reasons the possibility of distinguishing incoming calls made with caller ID suppression from those made without suppression is not actually provided, so as to demonstrate the fulfillment of the conditions for the application of the exception provided for in Article 15(4) of the GDPR. In any case, the entity has not examined the possibility of other methods of providing the information or a subset thereof, which would ensure that the rights of third parties are not adversely affected.

9. Based on the above, the Authority unanimously considers that there is a case to exercise its corrective powers under Article 58(2) of the GDPR in relation to the identified violations and specifically that, based on the circumstances established, it must address the entity 1) pursuant to the provision of Article 58(2)(c) of the GDPR, an order to satisfy the access right of the complainant a) to their personal data held by the entity as a provider of publicly available electronic communications services in accordance with Law 3917/2011 and Law 3471/2006, b) to the incoming calls received by the complainant, having the ability to assess and substantiate, as mentioned in Recital 8, that within the framework of examining the specific request and not generally, the conditions of Article 15(4) of the GDPR are met, whereby the satisfaction of the right and the provision of the information must be carried out in a manner that does not adversely affect the rights and freedoms of others, 2) pursuant to the provision of Article 58(2)(d) of the GDPR, an order to the entity to revise, within a period of one (1) month from the notification of this decision, the policy it applies regarding the satisfaction of access rights of data subjects, in the context of the entity's compliance with the GDPR, in such a way as to satisfy the submitted access rights in a sufficiently detailed manner and not merely by referring to the Privacy Policy.

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FOR THESE REASONS THE AUTHORITY

A) Issues to the company named Vodafone – ΠΑΝΑΦΟΝ Α.Ε.Ε.Τ., as the data controller, based on Article 58(2)(c) of the GDPR, an order to satisfy the access right exercised on 27/5/2019 by the complainant, in accordance with the details mentioned in the background of this decision.

B) Issues to the company named Vodafone – ΠΑΝΑΦΟΝ Α.Ε.Ε.Τ., as the data controller, based on Article 58(2)(d) of the GDPR, an order to revise, within a period of one (1) month from the notification of this decision, the policy it applies regarding the satisfaction of access rights of data subjects, so as to satisfy the submitted access rights in a sufficiently detailed manner and not merely by referring to the Privacy Policy, and to inform the Authority accordingly.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou